

Al-Hijab Al-Islami - The Islamic Hijab



S.M. Waris Hasan

Al-Islam.org

Al-Serat Vol. 7, nos. 3&4

[1] [1]

SHARES

[Get PDF](#) [2] [Get EPUB](#) [3] [Get MOBI](#) [4]

Authors(s):

[S.M. Waris Hasan](#) [5]

Publisher(s):

[Muhammadi Trust of Great Britain and Northern Ireland](#) [6]

Topic Tags:

[Hijab](#) [7]

Al-Hijab Al-Islami – The Islamic Hijab

S.M. Waris Hasan

Al-Serat, Vol. 7 (1981), nos. 3&4 pp. 37–41

The Islamic *Ahkam* (i.e. the tenets of religion, statutes, by-laws) are firstly derived from the Qur'an and secondly from *Sunna* (i.e. the action, the conduct, and the sayings of Muhammad). The third basis *Ijma'* (consensus of the opinions of the knowledgeable people of the time) and the fourth, *al-'Aql* (i.e. that a given command, judgement. etc. should be in harmony with the dictates of reason) are applied as means to arrive at a given judgement in order to lead to that of the first two. i.e. the Qur'an and the Sunna.

In order, therefore, to ascertain the religious significance of *al-hijab* (modest dress, *purdah*), and the mannerism of it, one has to turn first to the prime source, the Qur'an. In Surah an-Noor, 24, there appears the following verses:

قُلْ لِلْمُؤْمِنِينَ يَغُضُّوا مِنْ أَبْصَارِهِمْ وَيَحْفَظُوا فُرُوجَهُمْ ذَلِكَ أَزْكَى لَهُمْ إِنَّ اللَّهَ خَبِيرٌ بِمَا يَصْنَعُونَ

“Say to the believing men that they cast down their looks and guard their private parts; that is purer for them; surely Allah is Aware of what they do.” (24:30).

وَقُلْ لِلْمُؤْمِنَاتِ يَغْضُضْنَ مِنْ أَبْصَارِهِنَّ وَيَحْفَظْنَ فُرُوجَهُنَّ وَلَا يُبْدِينَ زِينَتَهُنَّ إِلَّا مَا ظَهَرَ مِنْهَا...

“And say to the believing women that they cast down their looks and guard their private parts and do not display their ornaments except what appears thereof...” (24:31).

The Qur'anic word for that which a woman is asked not to reveal is *zinah* which has been translated by Pickthall and Arberry as "adornment" while I have ventured to translate the word as "attracting features". The reason for this is based on the difference amongst the interpreters of the Qur'an (i.e. *al-mufasssirun*) whether what is to be concealed is "adornments" or the places they are worn on. In my translation, I have tried to cover both the interpretations.

This verse then, is the basis of hijab. The reader will notice that there is no mention of any part of the body by name and perhaps, it is being overenthusiastic to hold that since no specific part of a woman's body has been stipulated therefore, it applies to all parts of her body. For, if the total coverage was required what, then, was meant by the sentence: "Except what has to be revealed?" "It means," says al-Baidawi, "the face and the hands of a woman for those parts are not to be concealed." Having written this al-Qadi al-Baidawi seems to have some second thoughts. For he adds: "More distinct is the possibility that these two (the face and the hands) are to be revealed in the state of praying and not to be seen generally. For every part of a woman is private and therefore, is to be covered except to the husband and the blood relations, and in the times of emergencies such as the medical treatment or having been required to give evidence."¹

However, logic does not appear to agree with the second thoughts of al-Qadi (the Judge). For his explanation, that a woman was allowed to reveal her face and her hands 'while in the state of praying,' has two possibilities. Either she was performing the prayer in private or in the presence of her husband, blood relations, and those she would not be permitted to marry. In that case she would be allowed to reveal her *zinat*, by the edict of the Qur'an, and Sunna, whatever the word *zinat* may be taken to mean. Or she was performing her prayer in the presence of strangers and, so to speak, in public, then how come that she was permitted to reveal her face and hands while in the 'state of praying' covering them immediately after the prayer was over? At this point one is reminded of the remarks made by Reuben Levy: "In the same way," he writes, "as the Rabbinical commentators of the Pentateuch placed 'a fence about the law' by requiring a precautionary margin in order to ensure the entire fulfilment of its dictates, so the interpreters of the Qur'an demanded more than their original."²

The fifth century Shi'ite authority who is usually referred to as *shaikh al-ta'ifah* [i.e. the leader of the (Shi'ite) community] and who is known as Abu Ja'far al-Tusi, comments on the aforementioned verse in the following words: "God has commanded the believing women, *al-mu'minat*, to lower their gaze and refrain from seeing parts of men's bodies they were not permitted to see. Also, they have been commanded to protect their private parts except from those who were lawfully allowed such as their husbands. They have also been forbidden to reveal their attracting features, *zinat*, except for those parts

which they are permitted to reveal.”³

Then after rendering a number of interpretations relating to the Exemption, *illa ma zahara minha*, he comments: "They (the authorities), have universally agreed, *ajma'u*, that the face and the hands of a woman are not her private parts, *al-awrah*, (and therefore have been permitted to be revealed). For one is allowed to reveal them in the state of prayer.”⁴

However, not unlike al-Baidawi, al-Tusi proceeds to remark: "But the most precautionary way is the interpretation of Ibn Mas'ud.”⁵ Ibn Mas'ud interprets the exemption in the verse (i.e. the sentence: **"except what is to be revealed" (24:31)**, إِلَّا مَا ظَهَرَ مِنْهَا *illa ma zahara minha*,") to mean: "from the outwardly (things), the clothes; from the inwardly, the anklets, the earrings, the bracelets.”⁶ This interpretation of Ibn Mas'ud is somehow taken to mean the total coverage of the body. But this is a typical case of the impracticality of the intellectuals. How can one see the anklets without looking at the feet? And how can one observe the earrings without looking at the face? And how can one see the bracelets without seeing the hands? The next interpretation preferable to al-Tusi is that of al-Hassan who holds that the exemption is related to "the face and the (outer) garments only.”⁷

In the authoritative books of the *Usul al-Fiqh* (the basis of Islamic Jurisprudence) we were taught that when one was confronted with *Qawl ahad* (i.e. an individual opinion) which ran contrary to *al-Ijma* (i.e. the consensus of the opinions of the knowledgeable people of the time) one was supposed to adopt the latter and ignore the former except in the cases when the individual happens to be a *ma'sum* (i.e. infallible, one of the Imams of the Shi'ites). But in this case neither Ibn Mas'ud nor al-Hassan was an imam (in the technical term of the Shi'ites). Whereas al-Tusi admits an *ijma* in favour of the exemption of the face and the hands which existed at his time.

And that consensus seems to have survived a hundred years later. For when al-Tabarsi came to write his commentary he wrote: "There are three schools of opinion connected with the exemption; first is that of Ibn Mas'ud (which has already been quoted). The second is that of Ibn 'Abbas who exempts: "from the outwardly, the antimony (used to colour the eye), the ring, the cheeks and the colouring of hands," to which Qatadah adds, "the bracelet." The third school hold that the face and the hands (have been exempted). This school is that of 'Ata and Dahhak while al-Hassan holds the exemption to be: "the face and the fingertips." "Ali ibn Ibrahim in his commentary holds the exemption to be that of "(a woman's) hands and fingers.””⁸ The reader would notice that all the three schools, with the solitary exemption of the last mentioned, "Ali ibn Ibrahim, are agreed about the exemption of the face and of the hands from the stipulation of *al-hijab*.

The traditionists, however, are clearer than the commentators. Al-Kulaini records a number of traditions in his *al-Kafi* which state that the face and the hands of a woman are excluded from the requirements of *al-hijab*.⁹ It should be remembered that the third century Shi'ite authority, Muhammad ibn Ya'qub al-Kulaini is one of the sources of al-Tusi whose authority he acknowledges frequently. The sixth Imam, Ja'far al-Sadiq was asked about the exemption in the verse of *al-hijab* and the questioner used the very

word *zinat* used by the Qur'an, and the imam is quoted to have said that the hands and the face of women were not required to be concealed.¹⁰ In modern times the contents and the import of those early traditions formulate the basis of some of the theological works.

The late al-Sayyid al-Hakim, in his book *Mustamsak al-'Urwat al-Wuthqa* lends his support to the view that the face and the hands of a woman are excluded from the requirements of *al-hijab*.¹¹

Muhammad Jawad al-Maghniyyah words his views even more strongly and clearly. While speaking about *libas al-mussalli* (i.e. about the dress one is supposed to be clad in while praying), he writes: "They (the theologians) are unanimous, the early amongst them and those who followed them, what we summarise in the following: It is necessary for a man to cover his private parts unconditionally (while in the state of prayer) whether an onlooker was there or not. If one does not do so his prayer is null and void and it is necessary for a woman to cover all parts of her body except the face and the hands and the back of her feet in prayer and outside, it when there was an adult and sane onlooker present."¹²

I have refrained from quoting lengthy traditions. For although they are useful, in that they come from different sources, the deduction from them and the import of them amounts to the same thing. But I have deliberately mentioned the names of the works for those who may like to examine the question in some details. But what I have written, is perhaps sufficient to prove that the veiling of the face is more traditional than religious. And the discarding of the veil, where it has happened, cannot be taken as a sign of irreligiousness. The books of Islamic theology numerate many sins. Some of them have been called *al-kaba'ir* (i.e. the major ones), others have been named as *al-sagha'ir*, the minor sins. But it would not belong to either list.

One manifestation of the old and the original Islamic hijab still survives and that is in Mecca during the performance of *al-Hajj*, the Holy Pilgrimage, where women, whether follower of Imam Abu Hanifah, or follower of Imam Ahmad ibn Hanbal, or the follower of Imam Malik, or the follower of Imam Shafi'i, do not conceal their faces or hands. And in that, the followers of Imam Ja'far al-Sadiq are not different.

1. Al-Baidawi, Anwar al-Tanzil, Istanbul, 1887, p.467.

2. Reuben Levy, The Social Structures of Islam, Cambridge, 1962, p. 126.

3. Abi Ja'far al-Tusi, Al-Tibyan, Vol. 7, Najaf, 1966, pp. 279-280.

4. Abi Ja'far al-Tusi, Al-Tibyan, Vol. 7, Najaf, 1966, p. 279-281.

5. Abi Ja'far al-Tusi, Al-Tibyan, Vol. 7, Najaf, 1966, p.280.

6. Al-Tabarsi. Majma' al-Bayan, Vol. VII, Tehran, 1379, p. 138.

7. Abi Ja'far al-Tusi, Al-Tibyan, Vol. 7, Najaf, 1966, p. 280.

8. Al-Tabarsi. Majma' al-Bayan, Vol. VII, Tehran, 1379, p. 138.

9. Tabataba'i. Al-Mizan, Vol. 15, Beirut, 1973, §. 111.

10. Al-Shaikh Muhammad Baqir. Commentary on Masalik al-Afham, Vol.3. Tehran, n.d. p.273.

11. Al-Shaikh Muhammad Baqir. Commentary on Masalik al-Afham, Vol.3. Tehran, n.d. p.278.

[12.](#) Muhammad Jawad al-Maghniyyah. Fiqh al-Imam Ja'far al-Sadiq, Vol. 1. Beirut, 1965. pp. 152–153.

[1] [1]

SHARES

Source URL:

<https://al-islam.org/al-serat/vol-7-nos-34/al-hijab-al-islami-islamic-hijab-sm-waris-hasan>

Links

[1] <https://www.addtoany.com/share>

[2] <https://al-islam.org/printpdf/book/export/html/201219>

[3] <https://al-islam.org/printepub/book/export/html/201219>

[4] <https://al-islam.org/printmobi/book/export/html/201219>

[5] <https://al-islam.org/person/sm-waris-hasan>

[6] <https://al-islam.org/organization/muhammadi-trust-great-britain-and-northern-ireland>

[7] <https://al-islam.org/tags/hijab>